

COUNCIL DECISION 2013/391/CFSP

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COUNCIL DECISION 2013/391/CFSP

of 22 July 2013

in support of the practical implementation of United Nations Security Council Resolution 1540 (2004) on non-proliferation of weapons of mass destruction and their means of delivery

THE COUNCIL OF THE EUROPEAN UNION,

Having regard to the Treaty on European Union, and in particular Articles 26(2) and 31(1) thereof,

Having regard to the proposal of the High Representative of the Union for Foreign Affairs and Security Policy,

Whereas:

(1)

On 12 December 2003, the European Council adopted the EU strategy against the proliferation of weapons of mass destruction, Chapter III of which contains a list of measures to combat such proliferation which need to be taken both within the Union and in third countries.

(2)

The Union is actively implementing this strategy and is giving effect to the measures listed in Chapter III thereof, in particular by releasing financial resources to support specific projects conducted by multilateral institutions, providing States in need with technical assistance and expertise with regard to a wide range of non-proliferation measures, and fostering the role of the United Nations Security Council.

(3)

On 28 April 2004, the United Nations Security Council adopted Resolution 1540 (2004) ('UNSCR 1540 (2004)'), which was the first international instrument to deal in an integrated and comprehensive manner with weapons of mass destruction, their means of delivery and related materials. UNSCR 1540 (2004) established binding obligations for all States which aimed to prevent and deter non-State actors from obtaining access to such weapons and weapon-related material. It also called upon States to present the Committee of the Security Council established by UNSCR 1540 (2004) ('the 1540 Committee') with a report on steps which they have taken or intend to take to implement UNSCR 1540 (2004).

(4)

On 27 April 2006, the United Nations Security Council adopted Resolution 1673 (2006) and decided that the 1540 Committee should intensify its efforts to promote the full implementation of UNSCR 1540 (2004) through programmes of work, outreach, assistance, dialogue and cooperation. It also invited the 1540 Committee to explore with States and international, regional and sub-regional organisations the possibility of sharing experience and lessons learned, and the availability of programmes which might facilitate the implementation of UNSCR 1540 (2004).

(5)

On 20 April 2011, the UN Security Council adopted Resolution 1977 (2011) and decided to extend the mandate of the 1540 Committee for a period of 10 years until 25 April 2021. It also decided that the 1540 Committee was to continue to intensify its efforts to promote the full implementation by all States of UNSCR 1540 (2004), in particular on areas such as: (a) accountability, (b) physical protection, (c) border controls and law enforcement efforts and (d) national export and trans-shipment controls including controls on providing funds and services such as financing to such exports and trans-shipsments.

(6)

The implementation of Council Joint Action 2006/419/CFSP of 12 June 2006 in support of the implementation of the United Nations Security Council Resolution 1540 (2004) and in the framework of the implementation of the EU Strategy against Proliferation of Weapons of Mass Destruction (1) and Council Joint Action 2008/368/CFSP of 14 May 2008 in support of the implementation of the United Nations Security Council Resolution 1540 (2004) and in the framework of the implementation of the EU strategy against proliferation of weapons of mass destruction (2) contributed to diminishing significantly the number of non-reporting States and the number of States which did not submit additional information required by the 1540 Committee following their submission of incomplete reports.

(7)

The Office for Disarmament Affairs within the United Nations Secretariat, which is responsible for providing the 1540 Committee and its experts with substantive and logistical support, should be entrusted with the technical implementation of the projects to be carried out under this Decision.

(8)

This Decision should be implemented in accordance with the Financial and Administrative Framework Agreement concluded by the European Commission with the United Nations concerning the management of financial contributions by the Union to programmes or projects administered by the United Nations,

HAS ADOPTED THIS DECISION:

Article 1

1. In accordance with the EU strategy against the proliferation of weapons of mass destruction, which sets the objective of fostering the role of the UN Security Council and of enhancing its expertise in meeting the challenges of proliferation, the Union shall further support the implementation of United Nations Security Council Resolution 1540 (2004) ('UNSCR 1540 (2004)') and United Nations Security Council Resolution 1977 (2011).

2. The projects in support of UNSCR 1540 (2004), corresponding to measures of the EU strategy, shall consist of sub-regional workshops, country visits, meetings, events, training and public relations efforts.

3. The aims of the projects shall consist of:

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enhancing the relevant national and regional efforts and capabilities primarily through capacity-building and assistance facilitation;

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contributing to the practical implementation of specific recommendations of the 2009 Comprehensive Review of the status of implementation of UNSCR 1540 (2004), in particular in the areas of technical assistance, international cooperation and raising public awareness;

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initiating, developing and implementing National Action Plans upon States' request.

4. A detailed description of the projects is set out in the Annex.

Article 2

1. The High Representative of the Union for Foreign Affairs and Security Policy (hereinafter 'the High Representative') shall be responsible for the implementation of this Decision.
2. The technical implementation of the projects referred to in Article 1(2) shall be carried out by the UN Secretariat (Office for Disarmament Affairs) ('UN Secretariat (ODA)'). It shall perform this task under the responsibility and the control of the High Representative.
3. For this purpose, the High Representative shall enter into the necessary arrangements with the UN Secretariat (ODA).

Article 3

1. The financial reference amount for the implementation of the projects referred to in Article 1(2) shall be EUR 750 000 to be funded from the general budget of the European Union.
2. The expenditure financed by the amount stipulated in paragraph 1 shall be managed in accordance with the procedures and rules applicable to the general budget of the European Union.
3. The Commission shall supervise the proper management of the expenditure referred to in paragraph 2. For this purpose, the Commission shall conclude a financing agreement with the UN Secretariat (ODA). That financing agreement shall stipulate that the UN Secretariat (ODA) is to ensure visibility of the Union contribution, appropriate to its size.
4. The Commission shall endeavour to conclude the financing agreement referred to in paragraph 3 as soon as possible after the entry into force of this Decision. It shall inform the Council of any difficulties in that process and of the date of conclusion of the financing agreement.

Article 4

The High Representative shall report to the Council on the implementation of this Decision on the basis of regular reports prepared by the UN Secretariat (ODA). Those reports shall form the basis for the evaluation carried out by the Council. The Commission shall provide information on the financial aspects of the projects referred to in Article 1(2).

Article 5

1. This Decision shall enter into force on the day of its adoption.
2. This Decision shall expire 24 months after the conclusion of the financing agreement referred to in Article 3(3), or three months after the date of its adoption if no financing agreement has been concluded within that period.

Done at Brussels, 22 July 2013.